

Award by a Majority

Re: In the matter of Arbitration Act, 1940 AND
In the matter of Arbitration between Mr. A and Mr. B in respect of
disputes arising out of agreement dated ... between them.

MrA-----Claimaint
MrB-----Respondent

WHEREAS

(1) By an agreement dated ... made by Mr. A and Mr. B all the disputes arising out of the contract dated ... between the parties were referred to the Arbitration of three Arbitrators Mr. X Mr. Y. and Mr. Z.

(2) The statements of claims and defences were filed by the said parties before tile said Arbitratral Tribunal and documents by way of evidence were produced by the respective parties before the said Arbitrators.

(3) By the said agreement of reference, the parties had agreed not to lead any oral evidence.

(4) The parties appeared before the arbitral tribunal through their Advocates and they were given full hearing on the following days viz... and were allowed to produce further documentary evidence if they so desired.

(5) The documents by way of evidence produced before the arbitral tribunal are marked as Exh. A to 2.

(6) There has been a difference of opinion between the three arbitrators Mr. X and Mr Z being of the same opinion and Mr Y differs from the same.

(7) This award is therefore made by the majority of the arbitrators of Mr X and Z and they have signed the same.

Now after reading the statements of claim and defences of the parties and the documentary evidence produced before the said Arbitrators and considering the same and considering the oral arguments of the parties' Advocates and after applying our mind to the case, we i.e. Mr x and Mr. Z make award by majority as follows :—